

25SMCV05606 25SMCV05606

County: los-angeles

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Case Number: 25SMCV05606 Hearing Date: August 3, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

SAM MAZJ,

Plaintiff,

v.

GABRIEL BILLINGSLEY, et al.,

Defendants.

Case No.: 25SMCV05606

Consolidated with: 25STCV31611

Hearing Date: July 31, 2026

[TENTATIVE] order RE:

defendant'S DEMURRER TO

verified SECOND AMENDED

COMPLAINT

BACKGROUND

This case arises from a landlord-tenant dispute. Plaintiff Gabriel Billingsley entered into a lease agreement with Defendant Sam Mazj, individually and/or as Trustee of The Sam Mazj Revocable Trust of 2018, for property located at 969 Hilgard Ave., Unit 1108, Los Angeles CA 90024 (the Property). The Property is rent-stabilized and therefore governed by the rules of the Los Angeles Municipal Code (LAMC).

Billingsley began renting the Property in August 2023, and he claims that from the inception of his tenancy, Mazj failed to maintain the Property in habitable condition because there was asbestos in the vents and Mazj did not timely inspect and abate the asbestos contamination.

For his part, Mazj has sued Billingsley claiming he illegally sublet the Property to third parties, has fabricated or exaggerated claims of asbestos at the Property, and unjustifiably withheld his rent on the basis of these allegedly false claims. The two cases are consolidated.

Billingsley's operative second amended complaint (SAC) alleges claims for (1) negligence, (2) breach of the warranty of habitability, (3) breach of the covenant of quiet enjoyment, (4) nuisance, (5) breach of contract, (6) intentional infliction of emotional distress and (7) violation of LARSO/LAMC 152.00, et seq.

This hearing is on Mazj's demurrer to and motion to strike the SAC. The demurrer is limited to the seventh cause of action for violation of LARSO/LAMC. The motion to strike is limited to the prayer for punitive damages.

MEET AND CONFER

Code Civ. Proc. §§ 430.41 and 435.5 requires that before the filing of a demurrer or motion to strike, the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41(a), 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41(a)(2), 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).) Mazj submits the Declaration of Allen Farshi who attests that he met and conferred telephonically with Billingsley's counsel but the parties could not resolve the issues raised in the demurrer and motion to strike. This satisfies Mazj's meet and confer obligations.

REQUEST FOR JUDICIAL NOTICE

Mazj requests judicial notice of the Court's June 4, 2026 order ruling on Mazj's demurrer and motion to strike the first amended complaint ("FAC"). The request is denied. It is unnecessary to seek judicial notice of the Court's records in this action. All that is required is to point the Court to its own order in this case.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not

accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 (court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”); Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”); Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Violation of LARSO/LAMC

This Court had previously sustained a demurrer to Billingsley's cause of action for violation of LARSO/LAMC. The LAMC mandates that a landlord provide relocation assistance when a tenant is required to temporarily vacate a rental unit due to hazardous or untenable conditions not caused by the tenant. For relocation assistance to apply, the landlord must be engaged in “Primary Renovation Work.” (LAMC, § 152.01.) The Court found that Plaintiff failed to allege Defendant was engaged in Primary Renovation Work and Related Work and as such was required to provide temporary relocation under LAMC section 152.06.

The SAC now alleges that under the relevant statutes, “Primary Renovation Work” includes the abatement of hazardous materials, including asbestos, in accordance with applicable federal, state, and local laws. According to Billingsley, the remediation work necessarily involved substantial work affecting the mechanical systems serving the Unit, including contaminated HVAC ducts and ventilation components, bringing the required work within the scope of “Primary Renovation Work” and triggering Mazj's obligation to provide relocation assistance.

Mazj argues, however, that Billingsley was required to plead more, including that Billingsley was temporarily relocated in accordance with a Tenant Habitability Plan, that the Department accepted a Tenant Habitability Plan, that the Department determined temporary relocation was necessary, that any notice of Primary Renovation Work was served or required on the specific facts alleged, or that any specific temporary replacement housing payment was due and unpaid. (Demurrer at 2:5-9.)

The Court agrees with Mazj that LAMC section 156.06 requires that there be a Tenant Habitability Plan. To state a claim under LAMC § 152.06, it is not enough to simply allege relocation; the claim must be tied to a Tenant Habitability Plan that the Department reviewed and found (or that the Department itself determined) required temporary relocation. Without a THP or Department determination that relocation was necessary, a claim under § 152.06 would not meet the statutory basis for relief.

Accordingly, the Court sustains the demurrer to the seventh cause of action with leave to amend.

Punitive Damages

Mazj moves to strike paragraph 5 of the prayer for relief which seeks punitive damages, arguing that the Court had previously stricken Billingsley's claim for punitive damages. The Court disagrees. The Court's order did not address paragraph 5 of the prayer for relief. In any event, the Court overruled the demurrer to the IIED claim, and an IIED claim entitles Billingsley to punitive damages.

CONCLUSION AND ORDER

Based on the foregoing, the Court SUSTAINS the demurrer to the seventh cause of action with leave to amend and DENIES the motion to strike paragraph 5 of the prayer for relief.

IT IS SO ORDERED.

DATED: July 31, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

GABRIEL BILLINGSLEY,

Plaintiff,

v.

SAM MAZJ, et al.,

Defendants.

Case No.: 25SMCV05606

Consolidated with: Case No. 25STCV31611

Hearing Date: August 3, 2026

[TENTATIVE] order RE:

deendants' motion to bifurcate

trial and order separate trial

This case arises from a landlord-tenant dispute. Plaintiff Gabriel Billingsley entered into a lease agreement with Defendant Sam Mazj, individually and/or as Trustee of The Sam Mazj Revocable Trust of 2018, for property located at 969 Hilgard Ave., Unit 1108, Los Angeles CA 90024 (the Property). The Property is rent-stabilized and therefore governed by the rules of the Los Angeles Municipal Code (LAMC).

Billingsley began renting the Property in August 2023, and he claims that from the inception of his tenancy, Mazj failed maintain the Property in habitable condition because there was asbestos in the vents and Mazj did not timely inspect and abate the asbestos contamination. Billingsley also claims that Mazj knew of the asbestos contamination before he rented the premises to Billingsley.

In response, Mazj sued Billingsley claiming he illegally sublet the Property to third parties, has fabricated or exaggerated claims of asbestos at the Property, and unjustifiably withheld his rent on the basis of these allegedly false claims. Mazj further claims that Billingsley himself actually spread the contamination by allowing unauthorized third party vendors to inspect and test the contamination.

Among other causes of action, Mazj has asserted a claim for express contractual indemnity. According to Mazj, Billingsley's alleged conduct, including his "questionable" contamination claims, his use of unauthorized third-party inspectors or testers with "questionable" expertise, his demand for compensation based on alleged contamination after the property was certified to be allegedly free of contaminants, and his acts or omissions causing damage to the Property, triggered Billingsley's Defendant's contractual duties to defend, indemnify, reimburse, and hold Mazj harmless under the parties' lease agreement.

This hearing is on Mazj's motion to bifurcate the issues for trial. Mazj argues that issues relating to his claims of contractual indemnity, defense, reimbursement and tenant-caused contamination should be tried first. Mazj claims that assuming he prevails on the first phase, this will avoid a further, broader trial on medical causation, emotional distress, general and punitive damages, and rent abatement.

The Court concludes that Mazj's motion is premature. Trial is set for October 16, 2028, more than two years from now. The deadline for summary judgment has not yet passed. The issues Mazj claims should be decided first and are purportedly case-determinative may be resolved through summary judgment. Accordingly, the Court denies the motion to bifurcate without prejudice.

DATED: August 3, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court